

Deep Chandra v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 5 March 2025 · 2025:AHC:31937-DB · Writ-C No. 4496 of 2025 · **Writ disposed of; petitioner relegated to Clause 6.5; recovery stayed two months.**

HEADNOTE

A consumer aggrieved by a wrong electricity bill may seek correction under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ court disposed of the petition by directing an application within ten days, a decision in accordance with law within one month, and a two-month stay of recovery.

FACTUAL SUMMARY

Deep Chandra approached the Allahabad High Court by writ, alleging that the electricity licensee had sent him a wrong bill and was pursuing recovery under an impugned recovery notice. He sought interference with that bill and notice. The respondents were the State of Uttar Pradesh and another. Heard by a Division Bench on 5 March 2025, the petition did not invite evidence on the correctness of the charges; the Court treated the grievance as a billing dispute for which the Supply Code already provides an internal correction mechanism.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill correction under clause 6.5

HOLDING

A consumer aggrieved by a wrong electricity bill may get the bill corrected under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ court may dispose of the petition by directing the consumer to apply before the concerned authority within ten days and directing that authority to decide the application in accordance with law within one month, while staying recovery under the impugned notice for two months.

¶ 1-3

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer aggrieved by a wrong electricity bill may seek correction under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ court disposed of the petition by directing an application within ten days, a decision in accordance with law within one month, and a two-month stay of recovery.

¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE IMPUGNED ELECTRICITY BILL WAS IN FACT WRONG

Merits of the billing dispute left to the concerned authority under Clause 6.5. ¶ 1-2